

		Decl., ¶ 5.) Second, as shown by the allegations in the Complaint, Plaintiff was actually harmed by the Stock Redemption Agreement drafted by Bolduc in that the Stock Redemption Agreement was the instrument which allegedly stripped Plaintiff of his ownership rights in Shield. Bolduc fails to show how, under these circumstances, it can be said Plaintiff personally benefitted from the Engagement Agreement. Furthermore, mere incidental benefit to Plaintiff, as an owner and officer of Shield, is insufficient. Acceptance of such position "would be tantamount to a conclusion that every officer who signs a contract in his representative capacity is a third party beneficiary of that contract," which is not the law. (See <i>Benasra v. Marciano</i> (2001) 92 Cal.App.4th 987, 992.) Based on the foregoing, the motion is DENIED. Counsel for Plaintiff shall give notice.
10	Tarakji v. Secure One Capital Corp.	O/C
11	Baldwin v. Hyundai Motor America	Before the Court at present are the Demurrer and Motion to Strike filed on 12/23/25 by Defendant Hyundai Motor America ("Defendant"), as to the First Amended Complaint ("FAC") filed by Plaintiffs Catherine Baldwin and Terry Baldwin ("Plaintiffs") on 11/25/25. The Demurrer is SUSTAINED on the Fourth and Fifth Causes of Action (each a "COA") with 20 days leave to amend, but otherwise OVERRULED. The Court does not find the six-year statute of repose under § 871.21(b) to apply here. "[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations" (<i>Niagara Fire Ins. Co. v. Cole</i> (1965) 235 Cal.App.2d 40, 43.) Thus, "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right." (<i>Aronson v. Superior Court</i> (1987) 191 Cal.App.3d 294, 297–298.) The statute of limitations and repose embodied in § 871.21 became effective on January 1, 2025. By that time, almost six years had elapsed since Plaintiffs' purchase of the vehicle "on or around" 4/10/19. (FAC ¶ 6.) Plaintiffs' rights would have been almost immediately cut off if § 871.21 were applied in this context. The Demurrer as to COAs 1–4 on that basis is OVERRULED. However, Defendant has also demurred to COA 4 based on Comm. Code § 2725. The statute of limitations for an implied warranty claim is four years pursuant to Comm. Code § 2725. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1306.) Plaintiffs assert that tolling applies here as they did not discover the "latent defects" at issue until "shortly before filing the Complaint" as they had "continued to experience symptoms of the Vehicle's defects after Defendant's unsuccessful attempts to repair it and or representations the Vehicle was working as designed." (FAC ¶¶ 26,